

**JUSTIFICATION AND APPROVAL FOR OTHER THAN FULL AND OPEN
COMPETITION
41 U.S.C. 3304(a)(1)**

J&A No.: FY25-00107

Pursuant to the requirements of the Competition in Contracting Act (CICA) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.3 and in accordance with the requirements of FAR 6.303-1, the justification for the use of the statutory authority under FAR Subpart 6.3 is justified by the following facts and rationale required under FAR 6.303-2 as follows:

1. Agency and Contracting Activity.

The Department of Homeland Security (DHS), Office of Procurement Operations (OPO), Federal Protective Service (FPS), Acquisition Division (AD) proposes to extend the ordering period of predecessor Multiple Award Contract 70RFP218DEC000018 (Triple Canopy), for Armed Protective Security Officer (PSO) services at St. Elizabeth's Complex located in Washington, DC on a basis other than full and open competition.

2. Nature and/or Description of the Action being Approved.

(a) Nature of the action: FPS AD intends to procure PSO services on a noncompetitive basis for one (1) month, from April 1, 2025, through April 30, 2025, to allow time to finalize the award documentation and secure the necessary approvals for the follow-on effort for the remaining task order under this contract vehicle.

(b) Name and address of the contractors:

Triple Canopy, Inc.
13530 Dulles Technology Dr. Ste 500
Herndon, VA 20171

(c) Contract type: Indefinite Delivery, Indefinite Quantity (IDIQ), Firm Fixed Price

(d) Estimated total value: \$2,400,000.00 (one (1) month)

(e) Type of funding: Operations and Support Funds

(f) Year of funding: Fiscal Year 2025

(g) Solicitation number: Not Applicable

(h) Background information about the requirement:

FPS AD intends to procure PSO services pursuant to FAR 6.302-1 as only one responsible source and no other sources will satisfy agency requirements for the continuation of Armed PSO services at the

St. Elizabeths Complex in Washington, DC. This fixed price IDIQ MAC was awarded to Triple Canopy on September 12, 2018. FPS AD intends to limit continued performance by the incumbent contractor by modifying the existing MAC Task Order to extend the period of performance for one month.

3. Description of Supplies/Services.

The requirement is to provide Armed PSO services at St. Elizabeth's Complex located in Washington, DC. Triple Canopy is currently performing under a six (6) month extension in accordance with FAR 6.302-1 covered under a Class Justification and Approval (J&A) for Other Than Full and Open Competition which was approved by the Head of the Contracting Activity on September 26, 2024. The Class J&A covered the period October 1, 2024 – March 31, 2025, and included a total of 3 contracts. FPS AD requires an additional one-month extension on the existing order to allow time to finalize the award documentation and secure the additional approvals required per Acquisition Alert 25-11 Award and Termination Approvals Required by the Deputy Secretary issued on March 23, 2025. As such, FPS AD finds it necessary to request approval for an additional one (1) month of service under the authority for other than full and open competition cited herein. This will extend the ordering period under Contract 70RFP218DEC000018 from April 1, 2025, through April 30, 2025.

The Instant action is to allow FPS AD to continue procuring Armed PSO services from Triple Canopy under MAC 70RFP218DEC000018 to allow for the award approval of the competitive follow-on MAC TO. This will ensure uninterrupted security services at St. Elizabeth Campus in Washington, DC. The requirement fulfills existing Government need, and the extension of the existing contract is the most advantageous method of fulfilling the Government's needs, price and other factors considered. The contract extension also considers the government's need for continuity of operations and potential costs of disrupting operations. The period of performance for this extension is for to one (1) month of additional Armed PSO services from April 1, 2025, through April 30, 2025, at an approximate value of \$2,400,000.00.

4. Identification of Statutory Authority Permitting Other Than Full and Open Competition.

The statutory authority permitting other than full and open competition is 41 U.S.C. 3304(a)(1) implemented by FAR 6.302-1, only one responsible source and no other supplies or services will satisfy agency requirements.

5. Identification of Exception to the Buy American Statute

Not Applicable

6. Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

Triple Canopy is currently satisfactorily performing Armed PSO services under contract 70RFP218DEC000018 at St. Elizabeths Campus in Washington, DC. The contract is set to expire on March 31, 2025. FPS AD has completed the solicitation, pre-award activities, and is prepared to make a selection for award on the competitive follow-on task order. However, due to unanticipated and unavoidable delays created by the new Acquisition Alert 25-11 requirements, the Government

requires additional time to complete issuing the award. This will ensure uninterrupted security services at St. Elizabeths between the expiration of the existing contract and the start of the full performance by the successful vendor under the follow-on effort.

Due to extensive screening, training, health, licensing, and transition requirements required for Armed PSOs under the FPS program, another Armed PSO firm cannot immediately replace the existing contractor without a significant and severe drop in overall security jeopardizing federal government personnel, visitors, and assets. Triple Canopy is familiar with the instant requirements, facility locations, have fully qualified staff in place and are the only contractor at this time that can immediately fulfill the requirements without delay and interruption of services. As a result, a short-term extension of services under the current contract is necessary to ensure a seamless transition takes place from the existing requirement to the follow-on TO.

Title 40 United States Code (U.S.C.) §1315 gives DHS the responsibility to protect Federal facilities and the people thereon. Presidential Policy Directive 21 (PPD-21), and the National Infrastructure Protection Plan (NIPP) further refine DHS's responsibility to protect buildings, grounds, and property that are owned, occupied, or secured by the Federal Government. These documents also establish U.S. policy for the protection and resilience of the Nation's critical infrastructure and provide a framework for integrating efforts designed to enhance the safety of critical infrastructure. Given the reality of terrorist threats, it is in the best interests of DHS and the public to continue to allow Triple Canopy to provide services until the follow-on TO is appropriately awarded. Effective Armed PSO services are integral to the FPS mission to respond to terrorist attacks, domestic workplace violence, trespassing, disorderly conduct, and emergency medical situations. Armed PSO services also mitigate threats by detecting firearms, hazardous materials, and suspicious packages at these locations. Due to these critical roles, a modification to extend the current ordering period under contract 70RFP218DEC000018 with Triple Canopy is required to allow extension of the existing task order to provide continued services and to ensure uninterrupted service, a seamless transition, and to eliminate potential disruption in Armed PSO services at St. Elizabeths Campus.

7. Description of Efforts Made to Ensure that Offers are Solicited from as Many Potential Sources as is Practicable.

The circumstance restricting competition for this acquisition is that "only one responsible source and no other supplies or services will satisfy agency requirements," pursuant to FAR 6.302-1. Therefore, no exception to the FAR 5.2 notification requirement applies, and FPS AD posted this requirement on SAM.gov on 3/27/2024, pursuant to FAR 5.201(b)(1)(ii). FPS AD intends to make this justification publicly available pursuant to FAR 6.305.

8. Determination by the Contracting Officer that the Anticipated Cost to the Government will be Fair and Reasonable.

The vendor has agreed to continue providing Armed PSO Services for the one (1) month extension at the existing bill rates on current task order. The Contracting Officer has determined that the bill rates will be fair and reasonable based on comparison of the current prices to historical prices paid for the same or similar items in accordance with FAR 15.404-1(b)(2)(ii). The total estimated price for this additional one-month period is based on the estimated total value of the task order that needs to be

extended as reflected in the chart below. It is noted that since this is new work, separate CLINs /rates will be established at the Basic IDIQ level to match the same rates in the Task Order that is being extended. The total estimated value of the task order extension is \$2,400,000.00

Contract/ Task Order	Contractor	Contract Max PSO Rate	TO PSO Hours/Rate	Contract Max Supervisory PSO Rate	TO Supervisory Hours/ PSO Rate	Estimated 1 Month Value
70RFP218DEC000018- 70RFP222FREC00019	Triple Canopy					\$2.4M

The price analysis table below shows comparison in hourly priced rates from different contracts and task orders under the new MACs that were awarded for PSO armed guard services to the prices established under the predecessor MAC contract. The hourly rates for Basic PSO services and Supervisory PSO services under the new MAC contracts were evaluated prior to award of the contracts and task orders and were determined fair and reasonable based upon competition at the time of award.

Contractor	Contract Number	Locations	PSO/Supervisory Services Hourly Rate
Triple Canopy (Current Contract)	70RFP218DEC000018- 70RFP222FREC00019	DC	
Golden	70RFP224DEC000006	Nationwide	
Triple Canopy	70RFP224DEC0000011	Nationwide	
First Coast Security Solutions	70RFP224DEC000005- 70RFP224FREC00039	MD	
Universal Protection Service, Limited Partnership (dba Allied Universal Security Services)	70RFP224DEC000001- 70RFPW25FRWA00005	Eastern Washington and Idaho	
Triple Canopy	70RFP224DEC000011- 70RFP225FREC00012	MD	

The CO will ensure that the rates for the extension are competitive to the rates for other Armed PSO services in the marketplace. As Collective Bargaining Agreements (CBAs) are in place under these contracts, any other contractor would be required to pay PSOs the same wages and fringe benefits as the incumbent contractors are currently paying its PSOs. It is noted that there have been no significant revisions to the scope of the contract or general market conditions that would significantly alter the competitive landscape upon which the prices were based. It is noted that there are more training and other requirements for PSOs at St. Elizabeths compared to these other contracts resulting in additional costs.

Overall, based on the detailed analysis above, the maximum billing rates are in line with the current range of prices for similar types of services under other contracts for PSO services and are determined to be fair and reasonable.

9. Description of Market Research.

FPS AD has conducted its market research for the new requirement and is familiar with other potential sources and their qualifications. Based on FPS AD's market research, other firms could provide Armed PSO Services at St. Elizabeths Campus, but not by April 1, 2025, causing unacceptable delays or potentially jeopardizing the safety of government employees, government facilities, and its visitors. Accordingly, no other contractors can provide the services without an unacceptable interruption in service at this time.

10. Any Other Facts Supporting the Use of Other Than Full and Open Competition.

Since it is essential that services continue without interruption for the security of the campus, its tenants, and visitors, and the fact that the current contractor, Triple Canopy, is performing satisfactorily as documented under the Contractor Performance Evaluation Assessment Report (CPAR), it is in the best interest of the government to extend the ordering period for one (1) month under contract 70RFP218DEC000018 with the current contractor.

11. A Listing of the Sources, if Any That Expressed, in Writing, an Interest in the Acquisition.

Not Applicable.

12. A Statement of the Actions, if Any, the Agency May Take to Remove or Overcome Any Barriers to Competition Before Any Subsequent Acquisition for Supplies or Services Required.

This requirement is for the sole purpose of issuing a modification to continue Armed PSO services under contract 70RFP218DEC000018 for one month until the competitive follow-on task order is awarded. FPS AD plans to make awards no later than April 15, 2025, with the new TO award to start by May 1, 2025. It is essential that Armed PSO services continue without interruption for the security of St. Elizabeths Complex located in Washington, DC to ensure the safety of Government employees, Government facilities, and its visitors at this location.

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